

for Production of Documents and Things, Set One ("RFPD"). Plaintiffs additionally move to request for admissions to be deemed admitted ("Admissions").

On July 10, 2025, Plaintiffs served FROG, SROG, RFPD, and Admissions on Defendant. (Renge Decl. ISO FROG, ¶ 2; Renge Decl. ISO SROG, ¶ 2; Renge Decl. ISO RFPD, ¶ 2; Renge Decl. ISO Admissions, ¶ 2.) On March 11, 2026, Plaintiffs filed the present motions. On June 9, 2026, Defendant served responses to FROG, RFPD, and Admissions. (Rutherford Decl. ISO Opposition to FROG, ¶ 7; Rutherford Decl. ISO Opposition to RFPD, ¶ 7; Rutherford Decl. ISO Opposition to Admissions, ¶ 7.)

Form Interrogatories, Set One, Request for Production of Documents and Things, Set One, and Request for Admissions to be Deemed Admitted

Responses by Defendant to FROG, RFPD, and Admissions have been served on Plaintiffs. Accordingly, the motions to compel responses to FROG and RFPD, and to deem admissions admitted are denied as moot.

Special Interrogatories, Set One

Defendant argues Plaintiffs never served Defendant with SROG. Defendant points to the email serving discovery on Defendant from Plaintiffs. The email does not include any attachments entitled SROG or mention special interrogatories. (Rutherford Decl. ISO Opposition to SROG, ¶ 4 and Exh. A.) However, Plaintiffs served SROG by attaching the SROG questions to the end of the form interrogatories document. (Renge Decl. ISO SROG, Exh. A.) Defendant was served FROG which had SROG attached at the end of the same document. Therefore, Plaintiffs have served Defendant and were entitled to responses. Accordingly, Plaintiffs' motions to compel responses to SROG are granted.

Sanctions

Plaintiffs are seeking sanctions in the amount of \$810 per motion filed based on three hours of work by an attorney at \$250 an hour and a \$60 filing fee. Plaintiffs request thus totals to \$6,480 in sanctions. Defendant argues the amount sought is excessive as the motions are repetitive with very similar information and facts. Further, Defendant argues Plaintiff is attempting to multiply one meet and confer time by the number of motions filed. Plaintiffs are also requesting to recover on a filing fee Plaintiffs did not pay. Plaintiffs have fee waivers on file and do not pay filing fees. Accordingly, Plaintiffs' request for sanctions is granted but reduced. Defendant is ordered to pay \$750 in reduced sanctions to B&D Law Group, APLC, within 30 days of the service of the minute order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 6-24-26.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***In re: Graceson A. Vongsaly***
Superior Court Case No. 26CECG00722

Hearing Date: June 25, 2026 (Dept. 502)

Motion: Petition to Compromise Minor's Claim

**If oral argument is timely requested, it will be entertained on
Wednesday, July 8, 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To deny, without prejudice, the petition to approve the compromised claim of minor Graceson A. Vongsaly. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

Explanation:

The petition submitted by petitioner seeks approval of the settlement of the personal injury claim of minor Graceson A. Vongsaly ("minor") against Ivanny Ines Garcia Lopez, by and through their insurer, ESIS Insurance. There are issues with the petition that prevent approval.

The petition must be on form MC-350, verified by the petitioner and include all information having bearing on the reasonableness of the compromise. (Cal. Rules of Court, rule 7.950; Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

The petition at Item 7 indicates the minor was evaluated at an emergency room, but the medical provider, the date of the evaluation, and the diagnosis or treatment is not indicated. There is not an attachment to the petition, such as Attachment 8, providing a medical report to reflect a diagnosis or prognosis provided. Supporting medical records must be attached as Attachment 8.

The total medical expenses, reductions of medical expenses, and the resulting balance of medical expenses appear to be inconsistent between the petition, the attached declaration, and attached documentation. As such, the petition may need to be corrected at Items 12a and 12b. Evidence of medical expenses and all negotiated reductions must be provided to support the resulting payment from the settlement. As such, evidence of the medical costs incurred by the minor and evidence of the agreed reductions are requested.

Moreover, the terms of the settlement acknowledge that minor is a Medicaid recipient, which operates in California as Medi-Cal. No information was provided by way of a lien notice or letter from the California Department of Health Care Services that recovery of any benefits paid by it are waived. This alone requires the petition be denied.

The name of the financial institution for which the balance of minor's settlement is to be deposited must be provided in Attachment 18b(2).

The proposed order (MC-351) must be completed. Items 5, 6b, 8a, 8b, 9, 9c, and 10 are incomplete, therefore, the court requests a completed proposed order. Additionally, the proposed Order to Deposit Funds into Blocked Account (MC-355) filed with the court was incomplete at Item 4, thus, a corrected order is requested.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 6-24-26
(Judge's initials) (Date)